



General Assembly

February Session, 2026

Raised Bill No. 414

LCO No. 2424



Referred to Committee on TRANSPORTATION

Introduced by:
(TRA)

***AN ACT CONCERNING VEGETATION MANAGEMENT GUIDELINES
BY THE DEPARTMENT OF TRANSPORTATION.***

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 13b-31h of the general statutes is repealed and the
2 following is substituted in lieu thereof (*Effective October 1, 2026*):

3 (a) The Department of Transportation shall develop, and thereafter
4 revise as necessary, guidelines governing tree and vegetation
5 management, removal and replacement along state highways for use by
6 its employees and contractors when undertaking maintenance and
7 construction projects. The goal of the guidelines shall be to ensure the
8 impacts of maintenance and construction projects on the environment,
9 landscape and noise pollution are balanced or outweighed by measures
10 taken to avoid and minimize the impacts.

11 (b) Such guidelines shall include, but need not be limited to,
12 provisions addressing (1) the safety of the traveling public; (2) general
13 roadside vegetation management activities performed by the
14 department, including, but not limited to, mowing, herbicide
15 application, grassing, replanting with native species whenever

16 practicable, limb management, tree removal and debris removal; (3)
 17 beautification, enhancements and the effect on scenic roads designated
 18 pursuant to section 13b-31c; (4) visibility enhancement; and (5) the
 19 environmental impact of such work, including (A) preventing invasive
 20 tree, brush or plant species' growth and impact, (B) storm water run-off,
 21 (C) erosion, (D) replanting of vegetation species to expand and improve
 22 pollinator habitats, as described in section 22-90b, and (E) reduced
 23 mowing. Such guidelines shall apply to construction projects financed,
 24 in whole or in part, with federal funds to the extent such guidelines do
 25 not conflict with federal laws and regulations.

26 (c) Such guidelines shall not apply to the removal of any trees or
 27 vegetation necessary to maintain public safety or that is performed
 28 because of a weather-related civil preparedness emergency declared
 29 pursuant to section 28-9.

30 (d) [On or before January 1, 2024] Not later than February 1, 2027, the
 31 Commissioner of Transportation shall consider the results of the study
 32 and recommendations by the Department of Natural Resources and the
 33 Environment at The University of Connecticut concerning the carbon
 34 sequestration by trees and other vegetation along highways and other
 35 areas in the state conducted pursuant to section 63 of public act 24-151,
 36 as amended by this act, and determine the need, if any, for revisions to
 37 the guidelines adopted pursuant to subsection (a) of this section. If the
 38 commissioner determines a revision to such guidelines is not warranted,
 39 the commissioner shall submit a report, in accordance with the
 40 provisions of section 11-4a, to the joint standing committees of the
 41 General Assembly having cognizance of matters relating to
 42 transportation and the environment explaining the reasons for such
 43 determination. If the commissioner revises such guidelines, the
 44 commissioner shall submit such revised guidelines to [the] such joint
 45 standing committees, [of the General Assembly having cognizance of
 46 matters relating to transportation and the environment,] in accordance
 47 with the provisions of section 11-4a. [The] Such joint standing
 48 committees shall hold a joint public hearing on such revised guidelines

49 and the commissioner shall present such revised guidelines at the public
50 hearing.

51 Sec. 2. Section 63 of public act 24-151 is repealed and the following is
52 substituted in lieu thereof (*Effective July 1, 2026*):

53 (a) The Department of Transportation shall provide a grant from
54 available resources to the Department of Natural Resources and the
55 Environment at The University of Connecticut for the purpose of
56 studying the carbon sequestration by trees and other vegetation along
57 highways and other areas in the state.

58 (b) The Department of Natural Resources and the Environment at
59 The University of Connecticut shall (1) submit an interim report, not
60 later than January 1, 2025, and a final report, not later than [July 1, 2025]
61 October 1, 2026, concerning the [department's findings] results of such
62 study and any recommendations to the Department of Transportation
63 and the joint standing committees of the General Assembly having
64 cognizance of matters relating to transportation and the environment,
65 in accordance with the provisions of section 11-4a of the general statutes,
66 and (2) present either or both such reports at a hearing held jointly by
67 said joint standing committees.

This act shall take effect as follows and shall amend the following sections:		
Section 1	<i>October 1, 2026</i>	13b-31h
Sec. 2	<i>July 1, 2026</i>	PA 24-151, Sec. 63

Statement of Purpose:

To require the Commissioner of Transportation to consider the carbon sequestration by trees and other vegetation along highways and determine if revisions to the guidelines governing tree and vegetation management by the Department of Transportation are necessary.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]